

Published Opinion Affirming in Part, Vacating in Part, and Remanding

Decided: July 17, 2026 **Synthetic docket:** SYN-CA4-26-CV-4106 **Panel:** Presiding Judge Vale, Judge Quill, and Judge Reed, fictional composite bench profiles

Opinion of the Court

Judge Quill writes for a unanimous fictional panel. Open Grid Archive sought records from the fictional United States Department of Energy concerning final and superseded Grid Sentinel protective playbooks. DOE invoked Freedom of Information Act Exemptions 7(E) and 7(F), asserted that no further meaningful text could be segregated, and obtained summary judgment together with broad restrictions on lower-court filings.

The record supports one part of that result. DOE adequately explained why disclosure of nonpublic trigger relationships, response ordering, and implementation detail within the operational decision trees would expose protected techniques, procedures, or qualifying guidelines under 7(E). We affirm that limited ruling.

The record does not support categorical 7(F), the district court’s segregability conclusion, or its broad sealing order. We vacate those three rulings and remand them for separate reconsideration. Nothing in this opinion orders disclosure of information covered by the sustained 7(E) determination. The parties, people, systems, and events are wholly fictional, and this opinion contains no authentic operational instruction.

I. Jurisdiction

The district court entered final judgment for DOE on January 2, 2026, disposing of every merits claim in synthetic docket SYN-DMD-25-CV-0914. Open Grid filed a timely notice of appeal on February 2. After record transmittal on February 9, the case was opened under synthetic docket SYN-CA4-26-CV-4106.

We have jurisdiction under 28 U.S.C. § 1291. No unresolved claim or party remained below, and the later appellate orders governing controlled counterparts did not alter finality. Those orders regulate access during review rather than adjudicate the FOIA merits.

The issues before us are the application of Exemptions 7(E) and 7(F), compliance with FOIA's segregability and foreseeable-harm requirements, and the adequacy of the district court's judicial-record restrictions. Open Grid no longer challenges the reported search or DOE's identification of the twelve responsive records. We therefore do not decide a search-adequacy question or alter the certified record universe.

II. The Request

Nila Quen submitted request DOE-FOIA-2024-OG-041 for final and superseded editions of fictional Grid Sentinel playbooks and associated final governance instruments. DOE acknowledged the request in ACK-OG-0610. The parties then recorded a narrowed scope in CLR-OG-0621.

The clarification excluded drafts, routine correspondence, authentic incident material, technical configuration data, credentials, personal contact information, and similar real-world material. That boundary is important. The record presents sanitized functions and invented field representations, not instructions for a genuine system.

DOE made an initial release through RLS-OG-001. Open Grid pursued administrative appeal DOE-APR-2024-OG-017, and Nessa Rill issued FAD-OG-1007. The agency maintained its use of 7(E) and 7(F) and its conclusion that no additional meaningful passages were segregable at that stage. Open Grid then filed this synthetic action, challenging the breadth of those determinations rather than the narrowed scope of the request.

III. Search and Production

The search certification SRCH-OG-2025-0804 reports 16,842 raw hits, reduced to 1,284 deduplicated candidates. Forty-six files received custodian review, and twelve records containing 200 source pages were found responsive. The families consist of sixty decision-tree pages, fifty-four escalation-matrix pages, sixty-four coordination-appendix pages, and twenty-two governance pages.

DOE withheld three records and fifty-four pages in full, partly released seven records and 124 pages, and fully released two records and twenty-two pages. It produced 146 images: sixty-eight with no blackout and seventy-eight with redaction. Sixty-two redacted images cite 7(E), fifty-one cite 7(F), and thirty-five cite both. All fifty-four fully withheld pages cite 7(E), while thirty-nine of them also cite 7(F).

These figures are internally consistent and undisputed on appeal. They describe disposition, not legality. A page counted as partly released may still contain a disputed deletion, and a page withheld in full may rely on more than one exemption. Our task is to assess the agency's explanation for the current withholdings.

IV. District-Court Proceedings

Open Grid and DOE filed cross-motions for summary judgment supported by declarations, public Vaughn materials, and controlled counterparts using fictional semantic labels. Open Grid accepted that some nonpublic operational relationships might satisfy 7(E), but challenged DOE's categorical safety rationale, the breadth of several functional groups, and the asserted absence of further segregable text.

During the action, DOE completed another review and issued RLS-OG-002. The supplemental production added seventeen passages on eleven replacement pages. Six of those pages contain two newly released passages and five contain one. No responsive record or source-page count changed.

The district court concluded that the collection satisfied Exemption 7's threshold, sustained the disputed 7(E) and 7(F) categories, accepted the agency's revised segregability declaration, and entered judgment for DOE. It also continued broad restrictions over judicial filings that discussed controlled material. Open Grid appeals the exemption, segregation, and access rulings but does not allege bad faith arising from the supplemental release.

V. Governing Review

We review FOIA exemption determinations de novo, and the agency bears the burden of showing that withheld material fits the claimed exemption on an adequate factual basis. *Zaid v. U.S. Department of Justice*, 96 F.4th 697 (4th Cir. 2024). Declarations and Vaughn indexes may carry that burden when they describe the material and rationale with sufficient specificity for adversarial testing and meaningful review.

Rein v. U.S. Patent & Trademark Office, 553 F.3d 353 (4th Cir. 2009), also places the segregability burden on the agency. A conclusory statement that review occurred cannot replace a supported explanation that all reasonably separable nonexempt information was disclosed.

FOIA's foreseeable-harm provision generally permits withholding only when the agency reasonably foresees harm to an interest protected by an exemption, unless disclosure is prohibited by law. 5 U.S.C. § 552(a)(8)(A). That inquiry reinforces the required connection among the information, the statutory interest, and the predicted consequence. It does not demand public revelation of the protected information itself.

VI. Law-Enforcement Purpose

Exemption 7 applies to records or information compiled for law-enforcement purposes. The fictional decision trees, escalation matrices, and coordination appendices were assembled to support prevention, recognition, and coordinated handling of unlawful attacks affecting protected operations. Open Grid accepts that purpose for this appeal.

Grey v. Alfonso-Royals, 140 F.4th 173 (4th Cir. 2025), recognizes that training and operational records can satisfy the threshold when their function is tied to law enforcement. *Public Employees for Environmental Responsibility v. U.S. Section, International Boundary & Water Commission*, 740 F.3d 195 (D.C. Cir. 2014), similarly treats emergency-response records directed to criminal threats as potentially qualifying.

The threshold does not answer whether each withholding fits 7(E) or 7(F). A qualifying collection can include released governance matter, neutral administration, and protected operational detail. DOE's complete release of the twenty-two governance pages illustrates that distinction. We proceed to the two subparts and then to segregability, applying their separate elements to the agency's current showing.

VII. Exemption 7(E)

Section 552(b)(7)(E) permits withholding of qualifying records to the extent production would disclose law-enforcement techniques and procedures, or guidelines whose disclosure could reasonably be expected to risk circumvention of law. Grey explains that nonpublic implementation details can remain protected even when the general technique is publicly known. It also recognizes that the risk-of-circumvention qualifier modifies guidelines rather than techniques and procedures.

An agency may describe the protected function without publishing its implementation. Zaid allows categorical proof when the categories arise from document-by-document review, carry meaningful functional boundaries, and are tied to the protected interest and claimed harm. The category name alone is not proof.

Here the public record uses nonfunctional notices for decision conditions, response orders, and escalation values. The controlled record uses harmless inert labels solely to show placement. Neither supplies an actual value, relation, or method. DOE's declarations must therefore establish what disclosure of the underlying material would communicate and why 7(E) applies.

VIII. Operational Decision-Tree Relationships

DOE met its burden for the operational core. Its declarations explain that selected passages connect a nonpublic decision condition to an ordered response and embed implementation detail within that relationship. Other identified passages disclose how an escalation field functions inside the same decision structure. Revealing those relations would disclose the design of the fictional protective method.

Open Grid does not seek those values or relationships. It accepts that the functional showing is sufficiently concrete and that further public detail could defeat the exemption. We agree. The described trigger, ordering, escalation, and implementation relationships fall within protected techniques or procedures, or qualifying guidelines for which DOE reasonably identified a circumvention risk.

Our holding is deliberately narrow. It does not protect an entire source page merely because one operational relationship appears there. It does not assign 7(E) status to every role, reference, channel, caption, or revision line. We affirm only the district court's application of 7(E) to the nonpublic operational decision-tree relationships and their implementation details supported by the declarations.

IX. The Boundary of the Affirmance

DOE argues that some surrounding fragments also reveal structure when combined with released context. That proposition can be sound. A heading or relationship phrase may disclose whether a concealed field triggers, follows, or modifies another field even though neither value appears publicly.

But adjacency is not enough. An edition entry, approval sentence, publication owner, or descriptive heading may remain ordinary administration. The agency must explain what the particular fragment would communicate about the protected relation. Grey and PEER both require attention to the concrete link between disclosed information and 7(E)'s statutory protection.

To the extent DOE's current 7(E) entries establish that release of contextual text would expose the affirmed operational relation, that text remains within our holding. To the extent a passage is neutral and reasonably separable, it must be reconsidered under the segregation analysis below. The limited affirmance cannot serve as a blanket for the remainder of a mixed page.

X. Foreseeable Harm Under 7(E)

For the operational decision-tree relations, DOE also satisfied § 552(a)(8)(A). Its declarations move from the information at issue—the organization of concealed conditions, ordered responses, escalation, and implementation—to the protected interest and a reasonable prediction of increased predictability or circumvention.

The public notices themselves do not create that harm. They state only a field type. The agency’s explanation concerns the underlying relation and the contextual fragments that would expose it. Nothing in our analysis treats an approved notice or inert controlled label as a real secret.

For more general text, a statement that the collection supports protective activity is insufficient. The agency must connect release of that text to the 7(E) interest. On remand for segregability, DOE may preserve a contextual deletion by explaining that connection. It may not infer harm solely from the source record’s title or family. This distinction protects the supported operational method while enforcing the information-specific discipline Congress required.

XI. Vaughn Categories

DOE's primary Vaughn materials identify the twelve records, their families and dispositions, recurring field types, invoked exemptions, and predicted consequences. That framework provides useful organization. Its weakness is that certain repeated categories encompass placements with different apparent functions.

Under Zaid, categories remain permissible only when grounded in document-by-document review and meaningfully tied to the statutory interest and asserted harm. Rein requires sufficient description for testing. A fictional duty role may be operational in one passage and administrative in another; a safety reference or coordination field may likewise have unlike uses. Review cannot end with the shared noun.

The controlled placements help us test the agency's stated explanation, but inspection cannot substitute for a rationale DOE did not supply. We therefore credit the categories where the declarations establish the protected decision-tree relationship. We do not treat the same categorical format as automatically adequate for 7(F) or segregability, which present different interests and defects.

XII. Exemption 7(F)

Section 552(b)(7)(F) protects qualifying information whose production could reasonably be expected to endanger the life or physical safety of an individual. EPIC explains that the agency need not identify threatened people by name. It must nevertheless demonstrate that disclosure could reasonably produce the danger described by the statute.

The exemption can apply to a field that reveals an individual-connected assignment, dependency, or coordination relation. A public Vaughn entry need not provide the omitted identity or channel. It can describe the function and expected consequence at a level that preserves the protected information.

DOE grouped fictional duty-role, safety-reference, and contact-channel fields and often supplied a common danger rationale. It defended thirty-nine fully withheld pages under 7(F) in addition to 7(E), as well as redactions within partly produced records. We assess whether its categories demonstrate the required individual-safety connection rather than merely invoke safety-associated vocabulary.

XIII. Categorical 7(F) Cannot Stand

The declarations do not adequately connect every category member to expected danger to an individual. Some descriptions concern a protective assignment or dependency. Others identify an office, general reference, or the fact of coordination without explaining how disclosure would expose a person or increase physical risk.

The field labels cannot cure that gap. They are nonfunctional representations and convey no identity, communication route, or safety measure. Nor can the overall mission of the records replace the missing connection. PEER requires a concrete explanation linking the particular operational information to a reasonable safety threat; EPIC preserves that burden even when no threatened person is named.

We therefore vacate the district court's categorical 7(F) ruling. On remand, DOE may develop narrower functional categories founded on document-by-document review, supplement its explanation, or release matter it concludes does not meet the standard. The agency need not disclose an identity to justify a claim. Any information independently covered by our 7(E) affirmance remains protected regardless of the 7(F) result.

XIV. Segregability Standard

FOIA requires disclosure of every reasonably segregable nonexempt portion after deletion of exempt matter. The obligation applies to each responsive record and does not disappear because a page contains some validly withheld information. Rein places the burden on the agency to demonstrate a reasoned review rather than rely on a conclusory assurance.

An agency need not produce meaningless fragments. It also need not release context that would expose an exempt relationship. But intelligible titles, headings, approval text, revision history, and neutral narrative must be considered separately when they can stand without revealing the protected content.

The district court credited DOE's updated declaration that all additional reasonably segregable matter had been released. We review that conclusion against the record as it stood after RLS-OG-002, including the stable response totals and the precise passage-level changes. The question is not whether DOE acted in good faith; it is whether the current explanation carries its statutory burden.

XV. Effect of the Supplemental Release

RLS-OG-002 restored seventeen passages on eleven replacement pages. Six pages gained two passages each, and five gained one. The responsive universe remained twelve records and 200 source pages. The change therefore reflects revised line drawing within known material rather than discovery of a new record.

That correction is constructive and supports no inference of bad faith. It also establishes that passage-level separation was feasible on pages previously treated more broadly. The updated declarations do not adequately explain the standard used to distinguish the restored passages from comparable administration that remains withheld, or reconcile several continuing family-level assertions with the narrower result.

We vacate the segregability ruling. On remand, DOE must conduct and document a fresh review of all current deletions, accounting for the supplemental experience. It may retain any contextual fragment whose release would expose the 7(E) relation we affirm and any 7(F) material adequately supported after reconsideration. It must release meaningful nonexempt portions that reasonably stand alone.

XVI. The Remand Is Not a Disclosure Order

Open Grid asks for renewed agency judgment, not appellate redaction of the records. That is the proper course. A reviewing court should not guess which line can be released when the agency has not supplied a sufficient current account and protected relationships may cross passage boundaries.

DOE shall reconsider the categorical 7(F) claims and segregability together, because removal of one rationale does not eliminate another valid ground. A field no longer justified under 7(F) may remain withheld if it falls within the limited 7(E) affirmance. Conversely, an administrative sentence does not become protected merely because it shares a page with an operational relation.

The agency may issue revised Vaughn entries, declarations, or releases. The district court may set an orderly schedule and evaluate the resulting record under the standards stated here.

Nothing in this opinion requires public description of an authentic cyber fact, and the synthetic record contains none. The required product is a reviewable legal connection, not operational disclosure.

XVII. Access to Judicial Records

The district court broadly restricted filings that discussed the agency material. Judicial-record access is distinct from FOIA's source-record exemptions. *Company Doe v. Public Citizen* requires a court to identify the governing source of access, provide public notice and opportunity to object, consider less drastic alternatives, and make findings specific enough to support closure.

D. Md. Local Rule 105.11 requires proposed reasons supported by specific factual representations, an explanation why alternatives would not provide sufficient protection, and at least fourteen days on the public docket before a ruling so interested parties may object. Those requirements reinforce material-specific analysis; they do not permit closure of a group of documents merely because portions discuss sensitive information.

An exemption finding may inform the interest at stake, but it does not automatically justify withholding all legal argument, arithmetic, and administration within a judicial filing. The district court's order did not adequately distinguish among documents or explain why public redaction could not protect the relevant interest. Its access ruling cannot stand.

XVIII. Sealing Disposition

We vacate the district court's broad sealing order and remand for a judicial-record analysis independent of the agency's FOIA review. The court must identify each record for which restriction is sought, determine the applicable access right, give public notice, evaluate narrower alternatives, and state findings and duration addressed to that material.

Vacatur does not require publication of the operational relations sustained under 7(E). Public redacted counterparts, passage-level treatment, or other narrowly tailored measures may protect a supported interest while leaving legal reasoning available. If continued restriction is requested, the proponent bears the burden appropriate to the governing access right.

The four appellate controlled counterparts illustrate a bounded interim approach, but we do not convert that temporary arrangement into a permanent merits ruling. Each has an equal-page public version and contains only inert semantic labels. Their status remains governed by the May 8 order until the review point stated there. Any continuation after that point requires renewed, document-specific justification.

XIX. Interaction of the Four Holdings

Our rulings address separate questions. The 7(E) affirmance protects adequately explained nonpublic trigger relationships, response ordering, escalation structure, and implementation detail within operational decision trees. The 7(F) vacatur requires a person-safety connection for each renewed category. The segregability vacatur requires release of meaningful nonexempt text that can stand without exposing protected information. The sealing vacatur requires material-specific judicial findings.

No ruling cancels another. A passage may remain withheld under 7(E) even if 7(F) is not established. A source-record withholding may be valid while a broad restriction on the parties' legal briefs is not. A judicial record may receive narrowly supported treatment without making every underlying agency deletion lawful.

The mandate must preserve those distinctions. The district court may coordinate the remands but should enter separate findings for exemption, segregability, and judicial access. It shall not interpret our vacatur as an order to disclose a relation covered by the limited affirmance.

XX. Directions on Remand

DOE shall reassess its 7(F) categories using functional groupings tied to expected danger to an individual and founded on document-by-document review. It shall also conduct a fresh segregability analysis that accounts for the seventeen passages released on eleven replacement pages and explains the treatment of comparable administrative text.

The district court shall evaluate the resulting agency record de novo under FOIA. It may permit lawful supplementation, order an appropriate release where the agency fails to carry its burden, and preserve the operational decision-tree information covered by our 7(E) holding.

For judicial records, the court shall revisit each challenged restriction under Company Doe and Local Rule 105.11, with public notice, consideration of public redaction and other alternatives, and findings addressed to the particular document. Any continued restriction must also have a duration justified by material-specific narrow tailoring. These directions do not prescribe the outcome of a narrower 7(F) claim or access request. They prescribe the analysis necessary to decide it.

XXI. Interim Appellate Treatment

Our May 8 order granted only document-specific interim treatment for the three controlled briefs and controlled appendix excerpts. Public counterparts remained accessible, and the restriction preserved the semantic-placement comparison during adjudication. The order did not decide an exemption, endorse the district court's approach, or claim permanent need.

Consistent with that order, the Clerk shall review the status of each controlled counterpart when the mandate issues. Until then, the existing per-document and revocable boundary remains in effect. Any request for continued restriction must identify the specific material, governing access right, less restrictive alternatives, and duration. A valid 7(E) holding is relevant but not alone conclusive.

The controlled labels remain fictional and inert. Their interim treatment should not be described as protection of a real vulnerability, credential, system map, channel, or response instruction. The public opinion supplies the complete disposition and reasoning needed to understand this appeal without access to a controlled counterpart.

XXII. Conclusion

We affirm the judgment only insofar as it sustains withholding under Exemption 7(E) of nonpublic trigger relationships, response ordering, escalation structure, and implementation details within the operational decision trees. That protected core is adequately described and is not subject to disclosure on remand.

We vacate the categorical Exemption 7(F) ruling because DOE did not establish the required individual-safety connection for every functional category. We vacate the segregability ruling because the current explanation does not adequately account for the passage-level correction in RLS-OG-002. We vacate the district court's overbroad sealing order because it lacks the required material-specific access analysis. We remand those three matters for proceedings consistent with this opinion.

Because DOE is a United States agency, Federal Rule of Appellate Procedure 40(d)(1) would ordinarily allow forty-five days after today's judgment for a rehearing petition. By specific order in this case, we shorten that period to fourteen days. The rehearing deadline is therefore July 31, 2026. If no timely petition or later timing order intervenes, Rule 41(b) places mandate seven days after that deadline, on August 7, 2026.

The judgment is therefore **AFFIRMED IN PART, VACATED IN PART, AND REMANDED**. Presiding Judge Vale and Judge Reed join this opinion. Every name, institution, system, identifier, and event described here is fictional, and no part of the opinion supplies actionable cyber information.